



File No.: EXP202316953 (AI/00009/2024)

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 22, 2023, a complaint was filed with entry registration number REGAGE(...) before the Spanish Agency for Data Protection against ASNEF-EQUIFAX, SERVICIOS DE INFORMACIÓN SOBRE SOLVENCIA Y CRÉDITO, S.L. with NIF B82064833 (hereinafter, ASNEF) and HOLALUZ-CLIDOM, S.A. with NIF A65445033 (hereinafter, HOLALUZ). The reasons for the complaint are as follows:

During the period in which he was a client of HOLALUZ (from March 25, 2021, to April 23, 2022) and due to the consequence of invoices based on high estimated readings, he has submitted dozens of complaints and claims to their Customer Service demanding invoices based on actual readings. HOLALUZ demands payment of false invoices without any right. Initially, they demanded payment for invoices corresponding to periods after the cancellation date; after many complaints explaining that during that period he was no longer their client, he received the following message: "We inform you that your incident has been resolved! We have proceeded to correct your billing and issue your cancellation correctly as of 04/22/22, refunding everything that does not correspond to you. So don't worry about anything!".

Now they are requiring him to pay an invoice from four months prior to the cancellation, after a year since he changed companies, while he continues to await responses to his claims regarding all the inflated invoices he has paid.

Finally, HOLALUZ provided his personal data to third parties without his consent (I S G F INFORMES COMERCIALES SL and Grupo KRUK), and subsequently included his personal data in the ASNEF delinquent file for non-payment of false invoices.

The complaining party wants HOLALUZ to refrain from continuing to demand payment and to proceed to delete his data from the ASNEF delinquent file.

Along with the complaint, the following is submitted:

- Copy of various emails exchanged between the complaining party and the complained party (between November 2021 and June 2022) regarding various complaints made by the complaining party about the billing carried out by the complained party.
- Copy of the email dated 12/21/2022 received by the complaining party from HOLALUZ in which it is indicated that "your incident has been resolved! We have proceeded to correct your billing and issue your cancellation correctly as of 04/22/22, refunding everything that does not correspond to you."
- Communication from ASNEF dated 04/25/2023 informing the complaining party that on 04/24/2023 the complained party requested the registration of their data in the ASNEF file.

SECOND: On August 22, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Date on which the claimed facts occurred: April 25, 2023

In file EXP(...), the entity HOLALUZ, on 06/17/2024, provided the following documentation:

- Copy of the contract signed between the complained party and the complaining party for the supply of natural gas dated 03/25/2021 and with a start date of supply of 10/01/2021. (In clause 11.5 of the aforementioned contract, it is stated that "HOLALUZ will have 15 business days from the signing of this Contract to verify the solvency of the Client by consulting the financial solvency and credit files deemed appropriate and under strict compliance with applicable regulations. The result of such

consultation could, if applicable, condition the entry into force of the Contract. In case of non-payment, HOLALUZ may communicate the Client's data to such files, always complying with the guarantees provided by current legislation.").

- Email dated 12/29/2022 communicating pending payment receipt and payment demand. (From email ***EMAIL.1 to the email of the complained party ***EMAIL.2)
- Email dated 01/09/2023 communicating the initiation of the supply cut-off process due to non-payment. (From email ***EMAIL.1 to the email of the complained party ***EMAIL.2)
- Email dated 01/17/2023 communicating inclusion in the ASNEF delinquent file. (From email ***EMAIL.1 to the email of the complained party ***EMAIL.2)
- Email dated 01/26/2023 communicating billing incident (correction of invoices that the complained party qualifies as erroneous and issuance of

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a new invoice for the period from 01/01/2022 to 14/04/2022.

(From email ***EMAIL.1 to the email of the claimed party ***EMAIL.2).

In this email, HOLALUZ indicates that:

"We inform you that we have already resolved the issue with your billing.

We explain how we achieved success on 21/12/2022:

We have refunded the erroneous invoice no.(…) with an amount of €46.60.

We have refunded the erroneous invoice no.(…) with an amount of €24.14.

We have refunded the erroneous invoice no.(…) with an amount of €18.62.

We have refunded the erroneous invoice no.(…) with an amount of €17.12.

We have refunded the erroneous invoice no.(…) with an amount of €17.10.

We have generated a new one with reference number no.....(…), for an amount of €81.70, taking into account your last actual reading from the distributor.

Invoice no. 2.....(…) does not correspond to a refund, given that the billed period is from 01/01/2022 to 14/01/2022.

The same applies to invoice no.(…) for an amount of €8.45 where the billed period is from 01/12/2021 to 31/12/2021.

Remember that the re-billed period is from 15/01/2022 to 22/04/2022. We also provide a table of the billed consumptions and the high and low readings that the distributor does not provide.

- Certified communication of "Inclusion in the list of debtors of ASNEF" dated 12/04/2023 issued by the entity (...) with CIF (...) from the CERTIFIED EMAIL of ***EMAIL.1 (originated by ***EMAIL.1) Destination: ***EMAIL.2

The entity (...) is registered in the REGISTER OF QUALIFIED TRUST SERVICE PROVIDERS OF THE MINISTRY FOR DIGITAL TRANSITION AND PUBLIC FUNCTION, as a provider of the qualified service of certified electronic delivery - Qualified service of certified electronic delivery "Openum eIDAS". There are no certifications of qualified signature/seal creation devices from this entity.

This documentation has been incorporated into the present investigation proceedings.

RESULT OF THE INVESTIGATION PROCEEDINGS

In view of the previous background in EXP(...), the investigation proceedings concern facts in which the AEPD recognizes the possibility that the appellant may file a new complaint regarding the new facts presented, if deemed appropriate.

This complaint had already been submitted by the complainant on 22/05/2023, that is, on a date subsequent to the filing of the appeal for reconsideration and before the Resolution of said appeal was issued.

In this complaint, the complainant states that they are being requested for an invoice for four months of the period prior to the termination, after a year since they changed

companies, while still waiting for responses to their complaints regarding all the invoices raised that they have paid.

And finally, the complainant states that HOLALUZ has crossed all limits, facilitating their personal data to third parties without their consent (I S G F COMMERCIAL REPORTS SL and Grupo KRUK) and subsequently included their personal data in the ASNEF debtor file for non-payment of false invoices.

In the resolution of the filing of EXP(...), it is stated in relation to I S G F COMMERCIAL REPORTS SL that "Thus, the processing of the appellant's data by I.S.G.F. was carried out in its capacity as data processor on behalf of the claimed party, which is responsible for the aforementioned processing in accordance with the provisions of the GDPR, and it cannot be understood that there has been a transfer of data to third parties, but rather that the management of the disputed personal data would never have left the control of the claimed party."

Therefore, the present investigation proceedings have focused on these pending issues.

ASNEF has submitted a written response to the request for information in which, among other statements, it states that

- It provides the last contract signed with HOLALUZ-CLIDOM, S.A.

Indicating that "The Bureau service is regulated in Annex III data protection - A) REGARDING THE SERVICE OF CONTRIBUTION AND CONSULTATION TO THE ASNEF FILE.

Regarding this service, we specify that it is a Co-responsibility contract and not a Contract of Assignment."

- Likewise, ASNEF states that: "after consulting its Auxiliary Notification and Cancelled Operations files in the ASNEF file, it is recorded that the data of Mr. A.A.A., with NIF ***NIF.1, has been transferred by HOLALUZ-CLIDOM SA in relation to the following entries:

- First entry:

Operation code: ***NIF.1

Date of registration: 24/04/2023

Date of viewing: 24/05/2023

Date of cancellation: 17/05/2023

Dates of first and last unpaid due: 28/12/2022

Product: Others

Nature: Debtor

Unpaid balance at registration: €81.70

Unpaid balance at cancellation: €81.70

Name and surname: A.A.A.

Address: ***ADDRESS.1

- Second entry:

Operation code: ***NIF.1

Date of registration: 05/06/2023

Date of viewing: 05/07/2023

Date of cancellation: 06/06/2024

Dates of first and last unpaid due: 28/12/2022

Product: Others

Nature: Debtor

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Outstanding balance at registration: 81.70 euros

Outstanding balance at cancellation: 81.70 euros

Name and surname: A.A.A.

Address: ***ADDRESS.1

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They provide, as DOCUMENT TWO and THREE, screenshots evidencing the consultation of their files where these data are recorded.

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They have conducted a consultation of their Auxiliary Notification Files RP to verify if any prior payment requests directed to the claimant have been managed by their entity at the request of HOLALUZ-CLIDOM SA, and we have no information regarding this.

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They have conducted a consultation of their Auxiliary File of Canceled Operations in the ASNEF file to verify the reason for the cancellation of said data and to check if they acted directly in the cancellation process. In both cases, the cancellation was carried out by the entity. The first was due to the absence of information in the file sent by the entity (Pure photo) and the second was due to direct cancellation by the creditor. This information can be verified in the attached DOCUMENT THREE.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of processing

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The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In the present case, the processing of personal data of the claimant carried out by HOLALUZ falls under the provision of Article 6.1.b) of the GDPR, as the issuance of the unpaid invoice for December

2022 by the claimant corresponds to the period from January 15, 2022, to April 22, 2022, upon detecting incorrect billing and proceeding to correct it in a single invoice.

Data processing in credit information systems that comply with the provisions of Article 20 of the LOPDGDD can be legitimized based on the provision set out in Article 6.1.f) of the GDPR. By means of a certification dated 12/04/2023, issued by LLEIDA NETWORKS SERVEIS TELEMÀTICS S.A., it is recorded that HOLALUZ informed the claimant of the possibility of their inclusion in the ASNEF delinquent register. This possibility is included in the contract signed between the claimant and HOLALUZ, in which Clause 11.4 of the General Conditions states as a reason for registration in the solvency and credit files the non-payment of invoices by the customer:

"Holaluz will have 15 business days from the signing of this Contract to verify the solvency of the Customer by consulting the solvency and credit files deemed appropriate and under strict compliance with applicable regulations. The result of this consultation could, if applicable, condition the entry into force of the Contract. In case of non-payment, Holaluz may communicate the Customer's data to such files, always complying with the guarantees provided by current legislation."

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Likewise, HOLALUZ, as previously stated, provided the corrective invoice for the month of December 2022 to justify the existence of the debt. On the other hand, the claiming party submitted, along with their claim, a copy of the communication that ASNEF made regarding their inclusion on 24/04/2023 in its file at the request of HOLALUZ, without any record of the claiming party having filed any complaint with ASNEF, having been established that they are no longer registered with ASNEF for any debt with HOLALUZ. In light of the above, it is not evident that either HOLALUZ or ASNEF have processed the claiming party's data without at least one of the conditions established in Article 6 of the GDPR being met.

III

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection. All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds. Thus, since responsibility for the processing has not been established as indicated, the Presidency of the Spanish Agency for Data Protection AGREES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to ASNEF-EQUIFAX, SERVICIOS DE INFORMACIÓN SOBRE SOLVENCIA Y CRÉDITO, S.L. and HOLALUZ-CLIDOM, S.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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